

		to file a motion and have it heard prior to the proposed dismissal date in the notice of settlement. The Court considers the filing of the Notice under penalty of perjury representing the entire case has been settled a misrepresentation to the Court if, indeed, additional law and motion over settlement terms is contemplated, as it apparently was here. Settlement of the “entire case” means just that. Even if the parties had requested the court to reserve jurisdiction under section 664.6, there would be no settlement of attorney fees to enforce, because terms were not originally agreed upon by the parties. (See <i>Levitz v. The Warlocks</i> (2007) 148 Cal.App.4th 531, 535 [“A settlement with open material terms is not a ‘conditional settlement.’ To the contrary, it is not a settlement at all because, like all contracts, it is not binding until the settling parties agree on all its material terms.”].) Further, Plaintiffs “must follow the procedures outlined in [California Rules of Court, rule 3.1385] subdivisions (a) and (b) even if the parties settle the case and agree to dismiss under the provisions of Code of Civil Procedure section 664.6.” (Advisory Com. com., Cal. Rules of Court, rule 3.1385.) And, “Code of Civil Procedure section 664.6 allows for but does not mandate the dismissal of cases with conditional settlements either upon stipulation of the parties or on the court’s own motion. Subdivision (c) provides an alternative process for cases with a conditional settlement in which dismissal is not sought under Code of Civil Procedure section 664.6” (<i>Id.</i>) Because such issues are not material to the motion, the court will not decide whether the misrepresentation is material or potentially subject to sanctions, whether a true settlement or only an agreement to agree was reached, arguments concerning enforceability of the settlement, and/or whether some other procedure was viable. The Court rules only that the chosen course of action was not.
10	24-01438676 <i>Parker vs. General Motors, LLC</i>	1) Demurrer to Amended Complaint 2) Motion to Strike Portions Of Complaint Defendant General Motors, LLC’s Demurrer and Motion to Strike Portions of the Second Amended Complaint (SAC) are CONTINUED to _____. On the Court’s own motion, an Order to Show Cause re: Terminating Sanctions is scheduled for _____. On June 25, 2026, Plaintiff was previously ordered to file the SAC with the Court within 5 days. Plaintiff failed to do so and, thus, has disobeyed a court order. Further, Plaintiff’s failure to do so has wasted this Court’s resources and time and has prevented this case from proceeding.
11	25-01515519 <i>Philip A. Radovic, Executor of the Estate of Igor D. Radovic vs. Erceg</i>	Motion to Compel Arbitration Defendant Luka Erceg’s Motion to Compel Arbitration is GRANTED. Defendant’s request for judicial notice of Court filings is granted.